

Court No. - 3

Case :- WRIT - C No. - 17098 of 2021

Petitioner :- Sunil Kumar Sahani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ashok Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Sri Ashok Kumar, learned counsel for the petitioner, Sri Chetan Chatterjee, learned counsel for the respondent-corporation and learned Standing Counsel for the State.

2. Challenge has been raised to the recovery proceedings pending against the petitioner seeking recovery of Rs.1,15,332/- towards electricity dues.

3. Upon hearing learned counsel for the parties, it transpires that according to the respondent-corporation, theft of electricity had been committed by the petitioner resulting in proceeding under Section 135 of the Electricity Act, 2003. The provisional assessment order dated 04.11.2019 is stated to have been issued and served on the petitioner. Since the petitioner did not file any objection thereto, it has been claimed that the said provisional assessment has attained finality.

4. On the other hand, learned counsel for the petitioner contends that the provisional assessment order was not served on him in accordance with law, and in any case, the adverse material on the basis of which such provisional assessment order has been made, was not confronted to the petitioner.

5. Having heard learned counsel for the parties and having perused the record, we are unable to agree with the submission advanced by learned counsel for the

respondent-corporation that in such circumstances the provisional assessment order would attain finality. The procedure for making assessment and enforcing the demand created in, cases of theft is provided under Clause 8.1 of the UP Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'). While Clause 8.1(b) of the Code contemplates hearing in such cases, upon objections filed within fifteen days of provisional assessment of the demand, there is no reason to conclude that the period of fifteen working days contemplated under Clause 8.1(b)(iii) of the Code is mandatory.

6. In the context of the civil liability that is proposed to be created against a citizen in addition to the criminal liability, it is wholly proper that such opportunity be full, proper and real. Seen in that light, the communication dated 04.11.2019 (annexure no.1), neither discloses the adverse material being relied by the respondent-corporation nor it discloses any material on the basis of which adverse conclusion is proposed to be raised. To allow that provisional order to become final would cause unjust result.

7. Since, at present, no final decision appears to have been taken by the respondent-corporation, upon consideration of any reply of the petitioner, we consider it proper to **dispose of** the writ petition with the following directions:

(i) subject to the petitioner depositing a sum of Rs.25,000/- within a period of two weeks from today i.e. not later than 16 August, 2021, the respondent no.3 shall make available to the petitioner all adverse material that is being relied in support of the communication dated

04.11.2019 (annexure no.1);

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection to the action proposed by the respondent no.3 within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no.3 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned orders, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

8. For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

9. All further recovery shall abide by the decision to be made by the respondent-corporation.

Order Date :- 27.7.2021
S.Chaurasia